

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1010

Introduced by Brandt, 32.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to electricity; to amend sections 70-670 and
2 70-1012.01, Reissue Revised Statutes of Nebraska, section 70-704,
3 Revised Statutes Cumulative Supplement, 2024, and sections
4 70-1001.01, 70-1012, and 70-1015, Revised Statutes Supplement, 2025;
5 to provide for eminent domain of electrical energy storage property;
6 to provide for storage of electric energy under the Electric
7 Cooperative Corporation Act; to define and redefine terms, change
8 application, notice, filing, exemption, and violation provisions,
9 and provide for certain energy storage resources relating to certain
10 electric suppliers; to harmonize provisions; and to repeal the
11 original sections.
- 12 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 70-670, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 70-670 (1) In addition to any other rights and powers conferred upon
4 any district organized under or subject to Chapter 70, article 6, each
5 such district shall have and exercise the power of eminent domain to
6 acquire from any person, firm, association, or private corporation any
7 and all property owned, used, or operated, or useful for operation, in
8 the generation, transmission, storage, or distribution of electrical
9 energy, including an existing electric utility system or any part
10 thereof. The procedure to condemn property shall be exercised in the
11 manner set forth in Chapter 76, article 7.

12 (2) In the case of the acquisition through the exercise of the power
13 of eminent domain of an existing electric utility system or part thereof,
14 the Attorney General shall, upon request of any district, represent such
15 district in the institution and prosecution of condemnation proceedings.
16 After acquisition of an existing electric utility system through the
17 exercise of the power of eminent domain, the district shall reimburse the
18 state for all costs and expenses incurred in the condemnation proceedings
19 by the Attorney General.

20 (3) A district may agree to limit its exercise of the power of
21 eminent domain to acquire a project which is a renewable energy
22 generation facility producing electricity with wind and any related
23 facilities.

24 (4) No property owned, used, or operated as part of a privately
25 developed renewable energy generation facility meeting the requirements
26 of section 70-1014.02 shall be subject to eminent domain by any consumer-
27 owned electric supplier operating in the State of Nebraska.

28 **Sec. 2.** Section 70-704, Revised Statutes Cumulative Supplement,
29 2024, is amended to read:

30 70-704 Each corporation shall have power: (1) To sue and be sued,
31 complain, and defend, in its corporate name; (2) to have perpetual

1 succession unless a limited period of duration is stated in its articles
2 of incorporation; (3) to adopt a corporate seal, which may be altered at
3 pleasure, and to use it or a facsimile thereof, as required by law; (4)
4 to generate, manufacture, purchase, acquire, and accumulate electric
5 energy and to store, transmit, distribute, sell, furnish, and dispose of
6 such electric energy; (5) to acquire, own, hold, use, exercise and, to
7 the extent permitted by law, to sell, mortgage, pledge, hypothecate, and
8 in any manner dispose of franchises, rights, privileges, licenses,
9 rights-of-way, and easements necessary, useful, or appropriate; (6) to
10 purchase, receive, lease as lessee, or in any other manner acquire, own,
11 hold, maintain, sell, exchange, and use any and all real and personal
12 property or any interest therein for the purposes expressed herein; (7)
13 to borrow money and otherwise contract indebtedness, to issue its
14 obligations therefor, and to secure the payment thereof by mortgage,
15 pledge, or deed of trust of all or any of its property, assets,
16 franchises, revenue, or income; (8) to sell and convey, mortgage, pledge,
17 lease as lessor, and otherwise dispose of all or any part of its property
18 and assets; (9) to have the same powers now exercised by law by public
19 light and power districts or private corporations to use any of the
20 streets, highways, or public lands of the state or its political
21 subdivisions in the manner provided by law; (10) to have and exercise the
22 power of eminent domain for the purposes expressed in section 70-703 in
23 the manner set forth in sections 76-704 to 76-724 and to have the powers
24 and be subject to the restrictions of electric light and power
25 corporations and districts as regards the use and occupation of public
26 highways and the manner or method of construction and physical operation
27 of plants, systems, and transmission lines; (11) to accept gifts or
28 grants of money, services, or property, real or personal; (12) to make
29 any and all contracts necessary or convenient for the exercise of the
30 powers granted herein; (13) to fix, regulate, and collect rates, fees,
31 rents, or other charges for electric energy furnished by the corporation;

1 (14) to elect or appoint officers, agents, and employees of the
2 corporation and to define their duties and fix their compensation; (15)
3 to make and alter bylaws not inconsistent with the articles of
4 incorporation or with the laws of this state for the administration and
5 regulation of the affairs of the corporation; (16) to sell, lease, or
6 license its dark fiber pursuant to sections 86-574 to 86-578; and (17) to
7 do and perform, either for itself or its members or for any other
8 corporation organized under the Electric Cooperative Corporation Act or
9 for the members thereof, any and all acts and things and to have and
10 exercise any and all powers as may be necessary, convenient, or
11 appropriate to effectuate the purpose for which the corporation is
12 organized. Notwithstanding any law, ordinance, resolution, or regulation
13 of any political subdivision to the contrary, each corporation may
14 receive funds and extend loans pursuant to the Nebraska Investment
15 Finance Authority Act.

16 **Sec. 3.** Section 70-1001.01, Revised Statutes Supplement, 2025, is
17 amended to read:

18 70-1001.01 For purposes of sections 70-1001 to 70-1028.02, unless
19 the context otherwise requires:

20 (1) Associated energy storage resource means any energy storage
21 resource that:

22 (a) Is located on the premises of a privately developed renewable
23 energy generation facility;

24 (b) Has the primary purpose of storing the electric energy produced
25 at such facility; and

26 (c) Has a maximum limit of electricity output that, aggregated with
27 a co-located generation facility, is collectively limited to the
28 nameplate capacity of such generation facility;

29 (2) {1} Board means the Nebraska Power Review Board;

30 (3) {2} Commercial electric vehicle charging station means equipment
31 designed to provide electricity for a fee for the charging of an electric

1 vehicle or a plug-in hybrid electric vehicle, including an electric
2 vehicle direct-current charger or a super-fast charger, any successor
3 technology, and all components thereof. Commercial electric vehicle
4 charging station does not include the residence of a person where an
5 electric vehicle or a plug-in hybrid electric vehicle is charged if no
6 customer usage fee is charged;

7 (4) ~~(3)~~ Commercial electric vehicle charging station operator means
8 a person, partnership, corporation, or other business entity or political
9 subdivision that operates a commercial electric vehicle charging station;

10 (5) ~~(4)~~ Direct-current, fast-charging station means a publicly
11 available charging system capable of delivering at least fifty kilowatts
12 of direct-current electrical power to an electric vehicle's rechargeable
13 battery at a voltage of two hundred volts or greater;

14 (6) ~~(5)~~ Direct-current, fast-charging station operator means a
15 person, partnership, corporation, or other business entity that operates
16 a direct-current, fast-charging station open to the public. The term does
17 not include an electric supplier or a political subdivision;

18 (7) ~~(6)~~ Electric supplier or supplier of electricity means any legal
19 entity supplying, producing, storing, or distributing electricity within
20 the state for sale at wholesale or retail. Electric supplier does not
21 include a commercial electric vehicle charging station operator that is a
22 private person or privately owned partnership, privately owned
23 corporation, or other privately owned business;

24 (8) ~~(7)~~ Electronic-related means relating to electronic devices,
25 circuits, or similar systems, or the components of such electronic
26 devices, circuits, or similar systems, that require electrical currents
27 or electromagnetism to operate;

28 (9) Energy storage resource means a facility that is capable of
29 receiving electric energy from the electrical grid, or from a generation
30 source with which such facility is associated, and capable of storing
31 such energy for later injection into the electrical grid. Energy storage

1 resource does not include any device or equipment that is intended solely
2 to inject or absorb reactive power, including any capacitor or
3 synchronous condenser, or any equipment that is intended solely to
4 provide electric energy for electric vehicles;

5 ~~(10)~~ (8) Foreign adversary means a foreign government or foreign
6 nongovernment person determined to be a foreign adversary pursuant to 15
7 C.F.R. 791.4, as such regulation existed on February 7, 2025;

8 ~~(11)~~ (9) Military installation means:

9 (a) A United States Air Force ballistic missile silo located within
10 the geographic area described in 31 C.F.R. 802.211(b)(3), as such
11 regulation existed on January 1, 2025; or

12 (b) A United States Air Force base described in 31 C.F.R.
13 802.227(c), as such regulation existed on January 1, 2025;

14 ~~(12)~~ (10) Plug-in hybrid electric vehicle has the same meaning as in
15 section 60-345.01;

16 ~~(13)~~ (11) Private electric supplier means an electric supplier that
17 produces or stores producing electricity from a privately developed
18 renewable energy generation facility or energy storage resource that is
19 not a public power district, a public power and irrigation district, a
20 municipality, a registered group of municipalities, an electric
21 cooperative, an electric membership association, any other governmental
22 entity, or any combination thereof. A private electric supplier is
23 limited to the development of energy storage resources and privately
24 developed renewable energy generation facilities ~~those facilities as~~
25 ~~provided in subdivision (12) of this section;~~

26 ~~(14)~~ (12) Privately developed renewable energy generation facility
27 means and is limited to a facility that (a) generates electricity using
28 solar, wind, geothermal, biomass, landfill gas, or biogas, including all
29 associated energy storage resources of the facility and all electrically
30 connected equipment used to produce, collect, and store the facility
31 output up to and including the transformer that steps up the voltage to

1 sixty thousand volts or greater, and including supporting structures,
2 buildings, and roads, unless otherwise agreed to in a joint transmission
3 development agreement, (b) is developed, constructed, and owned, in whole
4 or in part, by one or more private electric suppliers, and (c) is not
5 wholly owned by a public power district, a public power and irrigation
6 district, a municipality, a registered group of municipalities, an
7 electric cooperative, an electric membership association, any other
8 governmental entity, or any combination thereof;

9 (15) ~~(13)~~ Regional transmission organization means an entity
10 independent from those entities generating or marketing electricity at
11 wholesale or retail, which has operational control over the electric
12 transmission lines in a designated geographic area in order to reduce
13 constraints in the flow of electricity and ensure that all power
14 suppliers have open access to transmission lines for the transmission of
15 electricity;

16 (16) ~~(14)~~ Reliable or reliability means the ability of an electric
17 supplier to supply the aggregate electric power and energy requirements
18 of its electricity consumers in Nebraska at all times under normal
19 operating conditions, taking into account scheduled and unscheduled
20 outages, including sudden disturbances or unanticipated loss of system
21 components that are to be reasonably expected for any electric utility
22 following prudent utility practices, recognizing certain weather
23 conditions and other contingencies may cause outages at the distribution,
24 transmission, and generation level;

25 (17) ~~(15)~~ Representative organization means an organization
26 designated by the board and organized for the purpose of providing joint
27 planning and encouraging maximum cooperation and coordination among
28 electric suppliers. Such organization shall represent electric suppliers
29 owning a combined electric generation plant accredited capacity of at
30 least ninety percent of the total electric generation plant accredited
31 capacity constructed and in operation within the state;

1 ~~(18)~~ ~~(16)~~ State means the State of Nebraska; and

2 ~~(19)~~ ~~(17)~~ Unbundled retail rates means the separation of utility
3 bills into the individual price components for which an electric supplier
4 charges its retail customers, including, but not limited to, the separate
5 charges for the generation, transmission, and distribution of
6 electricity.

7 **Sec. 4.** Section 70-1012, Revised Statutes Supplement, 2025, is
8 amended to read:

9 70-1012 (1) Before any electric generation facilities, any energy
10 storage resources, or any transmission lines or related facilities
11 carrying more than seven hundred volts are constructed or acquired by any
12 supplier, an application, filed with the board and containing such
13 information as the board shall prescribe, shall be approved by the board,
14 except that such approval shall not be required (a) for the construction
15 or acquisition of a transmission line extension or related facilities
16 within a supplier's own service area or for the construction or
17 acquisition of a line not exceeding one-half mile outside its own service
18 area when all owners of electric lines located within one-half mile of
19 the extension consent thereto in writing and such consents are filed with
20 the board, (b) for any generation facility when the board finds that (i)
21 such facility is being constructed or acquired to replace a generating
22 plant owned by an individual municipality or registered group of
23 municipalities with a capacity not greater than that of the plant being
24 replaced, (ii) such facility will generate less than twenty-five thousand
25 kilowatts of electric energy at rated capacity, and (iii) the applicant
26 will not use the plant or transmission capacity to supply wholesale power
27 to customers outside the applicant's existing retail service area or
28 chartered territory, (c) for acquisition of transmission lines or related
29 facilities, within the state, carrying one hundred fifteen thousand volts
30 or less, if the current owner of the transmission lines or related
31 facilities notifies the board of the lines or facilities involved in the

1 transaction and the parties to the transaction, or (d) for the
2 construction of a qualified facility as defined in section 70-2002.

3 (2)(a) Before any electric supplier commences construction of or
4 acquires an electric generation facility, energy storage resource, or
5 transmission lines or related facilities carrying more than seven hundred
6 volts that will be or are located within a ten-mile radius of a military
7 installation, the owner of such facility, resource, transmission lines,
8 or related facilities shall provide written notice certifying to the
9 board that such facility, resource, or facilities contain no electronic-
10 related equipment or electronic-related components manufactured by any
11 foreign adversary.

12 (b) Any electric supplier that supplies, produces, stores, or
13 distributes ~~supplying, producing, or distributing~~ electricity within the
14 state for sale at retail is exempt from subdivision (a) of this
15 subsection if it is in compliance with the critical infrastructure
16 protection requirements issued by the North American Electric Reliability
17 Corporation. To receive such exemption, the electric supplier shall
18 submit written notice to the board certifying that it is in such
19 compliance. The electric supplier shall also submit written notice to the
20 board at any time such supplier is no longer in such compliance.

21 (3)(a) Before any electric supplier that is not exempt from
22 subdivision (2)(a) of this section commences construction of or acquires
23 an electric generation facility or transmission lines or related
24 facilities carrying more than seven hundred volts that will be or are
25 located within a ten-mile radius of a military installation, the electric
26 supplier shall, following consultation with such supplier's vendors,
27 submit a one-time written notice to the board certifying that such
28 facility or facilities continually contain no electronic-related
29 equipment or electronic-related components manufactured by any foreign
30 adversary.

31 (b) The electric supplier shall also submit written notice to the

1 board at any time such facility or facilities are no longer in compliance
2 with the certification provided under subdivision (a) of this subsection.

3 (4) Notwithstanding subsections (2) and (3) of this section, an
4 electric supplier required to provide certification under subsection (2)
5 of this section may use electronic-related equipment or electronic-
6 related components manufactured by a foreign adversary if the board
7 preapproves the use of such equipment or components after finding that:

8 (a) There is no other reasonable option for procuring such equipment
9 or components; and

10 (b) Not procuring or using such equipment or components would cause
11 a greater harm to the state or residents of the state than the harm
12 associated with the equipment or components.

13 (5) Before any private electric supplier commences construction or
14 acquires an energy storage resource or related facilities, the owners of
15 such resource or proposed resource shall file an application with the
16 board that contains the information prescribed by the board and shall
17 obtain approval of such application by the board. Such application shall
18 include a written notice that demonstrates to the board that:

19 (a) The private electric supplier has entered into or, prior to
20 construction, will enter into a power purchase agreement or similar
21 contractual agreement with a Nebraska public power district, public power
22 and irrigation district, municipality, registered group of
23 municipalities, electric cooperative, or electric membership association,
24 any other governmental entity, or any combination thereof for purchase of
25 all electric energy and electric capacity of such resource and will
26 maintain a contractual relationship throughout the operational life of
27 the resource;

28 (b) The Nebraska consumer-owned electric supplier that is a party to
29 such contractual relationship has filed the application jointly with the
30 private electric supplier for board approval of the energy storage
31 resource;

1 (c) The private electric supplier has obtained written consent from
2 each electric supplier that will have any part of the energy storage
3 resource located in its chartered territory or retail service area and
4 any other electric supplier that will be interconnected with the private
5 electric supplier at a substation or switchyard that contains facilities
6 rated at one hundred kilovolts or greater. Any written consent that is
7 required under this subdivision shall be provided on a form that is
8 prescribed by the board. Such written consent shall be filed with the
9 board with the application; and

10 (d) The private electric supplier has entered into a joint
11 transmission development agreement with the consumer-owned electric
12 supplier that owns the transmission facilities that will interconnect
13 with the energy storage resource. The agreement shall address
14 construction, ownership, operation, and maintenance of such additions or
15 upgrades to the transmission facilities as required for the energy
16 storage resource. The joint transmission development agreement shall be
17 negotiated and executed contemporaneously with the generator
18 interconnection agreement or any other directive of the applicable
19 regional transmission organization with jurisdiction over the addition or
20 upgrade of transmission. The terms of such agreement shall be consistent
21 with prudent electric utility practices for the interconnection of the
22 energy storage resource, the consumer-owned electric supplier's
23 reasonable transmission interconnection requirements, and applicable
24 transmission design and construction standards. The consumer-owned
25 electric supplier shall have the right to purchase and own transmission
26 facilities as set forth in the joint transmission development agreement.
27 The private electric supplier that owns the energy storage resource shall
28 have the right to construct any necessary facility or improvement set
29 forth in the joint transmission development agreement pursuant to the
30 standards set forth in the agreement at the private electric supplier's
31 cost.

1 (6) Nothing in this section shall be construed to limit the
2 authority of or require an electric supplier that is operating in this
3 state to enter into a joint agreement with a private electric supplier to
4 develop, construct, or jointly own a generation facility or energy
5 storage resource.

6 (7) Nothing in this section shall be construed to authorize a
7 private electric supplier to:

8 (a) Sell or deliver electricity at retail in Nebraska;

9 (b) Own or operate distribution facilities intended to provide
10 retail electric service in this state; or

11 (c) Have or use the power of eminent domain in this state.

12 (8) (5) A privately developed renewable energy generation facility
13 is exempt from this section if it complies with section 70-1014.02.

14 **Sec. 5.** Section 70-1012.01, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 70-1012.01 (1) If a supplier terminates construction or acquisition
17 of electric generation or transmission facilities or energy storage
18 resources after receiving approval for the facilities or resources from
19 the board, the supplier shall file with the board, within thirty days
20 after the action taken to terminate construction or acquisition, a
21 statement of the factors or reasons relied upon by the supplier in taking
22 such action. Within ten days after receipt of such a filing, the board
23 shall give notice of the filing to such other suppliers as it deems
24 interested or affected by such action and it shall hold a hearing for the
25 purpose of obtaining such additional information as the board deems
26 advisable or necessary to inform other suppliers and the public of the
27 reasons for such termination. Notice of any such hearing shall be given
28 to those suppliers previously given notice of the filing and to any other
29 parties expressing interest in the approved application.

30 (2) The board shall not have authority to approve or deny the action
31 of a supplier terminating construction or acquisition, and any such

1 filing or hearing shall be advisory and solely for the purpose of
2 informing the board, other suppliers, interested parties, and the
3 ratepayers of this state of the factors or reasons relied upon in taking
4 action to terminate construction or acquisition.

5 (3) Nothing in this section shall constitute or be construed as a
6 defense to any cause of action, including a claim for breach of contract,
7 resulting from such termination.

8 (4) A privately developed renewable energy generation facility is
9 exempt from this section if it complies with section 70-1014.02.

10 **Sec. 6.** Section 70-1015, Revised Statutes Supplement, 2025, is
11 amended to read:

12 70-1015 (1) If any supplier violates Chapter 70, article 10, by
13 either (a) commencing the construction or finalizing or attempting to
14 finalize the acquisition of any generation facilities, any energy storage
15 resources, any transmission lines, or any related facilities without
16 first providing notice or obtaining board approval, whichever is
17 required, or (b) serving or attempting to serve at retail any customers
18 located in Nebraska or any wholesale customers in violation of section
19 70-1002.02, such construction, acquisition, or service of such customers
20 shall be enjoined in an action brought in the name of the State of
21 Nebraska until such supplier has complied with Chapter 70, article 10.

22 (2) If the executive director of the board determines that a private
23 electric supplier commenced construction of a privately developed
24 renewable energy generation facility less than thirty days prior to
25 providing the notice and certification required in subdivisions (2)(a)
26 and (b) of section 70-1014.02, the executive director shall send notice
27 via certified mail to the private electric supplier, informing it of the
28 determination that the private electric supplier is in violation of such
29 subdivisions and is subject to a fine in the amount of five hundred
30 dollars. The private electric supplier shall have twenty days from the
31 date on which the notice is received in which to submit the notice and

1 certification described in such subdivisions and to pay the fine. Within
2 ten days after the private electric supplier submits a notice and
3 certification compliant with subsection (2) of section 70-1014.02 and
4 payment of the fine, the executive director of the board shall issue the
5 written acknowledgment described in subsection (3) of section 70-1014.02.
6 If the private electric supplier fails to submit a notice and
7 certification compliant with subsection (2) of section 70-1014.02 and pay
8 the fine within twenty days after the date on which the private electric
9 supplier receives the notice from the executive director of the board,
10 the private electric supplier shall immediately cease construction or
11 operation of the privately developed renewable energy generation facility
12 and any associated energy storage resource.

13 (3) If the private electric supplier disputes that construction was
14 commenced less than thirty days prior to submitting the written notice
15 and certification required by subdivisions (2)(a) and (b) of section
16 70-1014.02, the private electric supplier may request a hearing before
17 the board. Such request shall be submitted within twenty days after the
18 private electric supplier receives the notice sent by the executive
19 director pursuant to subsection (2) of this section. If the private
20 electric supplier does not accept the certified mail sent pursuant to
21 such subsection, the executive director shall send a second notice to the
22 private electric supplier by first-class United States mail. The private
23 electric supplier may submit a request for hearing within twenty days
24 after the date on which the second notice was mailed.

25 (4) Upon receipt of a request for hearing, the board shall set a
26 hearing date. Such hearing shall be held within sixty days after such
27 receipt. The board shall provide to the private electric supplier written
28 notice of the hearing at least twenty days prior to the date of the
29 hearing. The board or its hearing officer may grant continuances upon
30 good cause shown or upon the request of the private electric supplier.
31 Timely filing of a request for hearing by a private electric supplier

1 shall stay any further enforcement under this section until the board
2 issues an order pursuant to subsection (5) of this section or the request
3 for hearing is withdrawn.

4 (5) The board shall issue a written decision within sixty days after
5 conclusion of the hearing. All costs of the hearing shall be paid by the
6 private electric supplier if (a) the board determines that the private
7 electric supplier commenced construction of the privately developed
8 renewable energy generation facility and any associated energy storage
9 resource less than thirty days prior to submitting the written notice and
10 certification required pursuant to subsection (2) of section 70-1014.02
11 or (b) the private electric supplier withdraws its request for hearing
12 prior to the board issuing its decision.

13 (6) A private electric supplier which the board finds to be in
14 violation of the requirements of subsection (2) of section 70-1014.02
15 shall either (a) pay the fine described in this section and submit a
16 notice and certification compliant with subsection (2) of section
17 70-1014.02 or (b) immediately cease construction or operation of the
18 privately developed renewable energy generation facility and any
19 associated energy storage resource.

20 **Sec. 7.** Original sections 70-670 and 70-1012.01, Reissue Revised
21 Statutes of Nebraska, section 70-704, Revised Statutes Cumulative
22 Supplement, 2024, and sections 70-1001.01, 70-1012, and 70-1015, Revised
23 Statutes Supplement, 2025, are repealed.